

“ In a case were the King believed his prerogative or interest concerned, and requires the judges to attend him for their advice, whether in such a case they ought not to stay proceedings till his Majesty had consulted them?” All the judges immediately said, “ Yes,” except Coke, who told the council, “ when the case happened, he should do that which should be fit for a judge to do.”*

There can be but one opinion of the single-handed courage of Coke in this transaction, or of the iniquity of this examination. It was equally disgraceful to Bacon, and to the pedant his master ; for Bacon knew better things, and should have scorned to lend himself to so disgraceful an attack upon the judges of the land.

Bacon knew that every judge, by his oath, promised to “ deny no man common right,”† their very commissions directing them to do justice according to the laws and customs of England. He knew, too, that several judges before his time had been fined for acting against the law, even when supported by a warrant from the King. The King’s prerogative, therefore, could not justify a judge for delaying justice, when

* Bacon’s Works, vol. 5, p. 433.

† 18 Edward III, s. 4.